

		Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel (MC-053).
01532942	Fullerton - Other	TENTATIVE RULING Case: Fullerton - Other Probate 01532942 Calendar No: 6 Date: 09/02/26 MOTION TO EXPUNGE LIS PENDENS (ROA 27) Petitioner Felicia Hall ("Petitioner") moves to quash the notice of pendency of action recorded by Respondent Noah Fullerton ("Respondent") against the real property located in Hemet, California. (ROA 27.) A motion to expunge a lis pendens must be granted where a lis pendens is improper, either because: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code Civ. Proc., §§ 405.31, 405.32; Prob. Code, § 1000.) Unlike most other motions, when a motion to expunge is brought, the burden is on the party <u>opposing</u> the motion to both show the existence of a real property claim and the probable validity of that claim. (<i>Kirkeby v. Superior Court</i> (2004) 33 Cal.4th 642, 647; Code Civ. Proc., § 405.30.) Here, Respondent has not opposed this motion and, therefore, has not met his burden to show the existence of a real property claim or the probability of prevailing. Furthermore, Respondent has not asserted any claims whatsoever, as he has only filed a responsive pleading. (ROA 8.) The motion to expunge lis pendens is GRANTED.

		When ruling on a motion to expunge lis pendens, the court must award the prevailing party its reasonable attorney's fees and costs incurred in making or opposing the motion, unless the court finds either that: (1) the non-prevailing party acted with substantial justification; or (2) other circumstances make the imposition of attorney's fees and costs unjust. (Code Civ. Proc., § 405.38.) Such an award is to be made against the losing party only, not counsel. (<i>Doyle v. Superior Court</i> (1991) 226 Cal.App.3d 1355, 1359.) The court finds there was no substantial justification for the filing of the lis pendens. Since Respondent has not opposed this motion, the court reduces the "anticipated fees" from 4 hours to 1 hour. The court awards Petitioner reasonable attorney's fees of \$4,130.00 (\$350p/h x 11.8 hrs) payable by Respondent within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Petitioner is ordered to serve notice of this ruling and/or may elect to prepare, file, and serve a proposed order after hearing.
01437433	Compas - Trust	TENTATIVE RULING Case: Compas - Trust 01437433 Calendar No: 7 Date: 09/02/26 MOTIONS TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND MOTION DEEM REQUESTS FOR ADMISSION ADMITTED (ROAs 32, 34, 35) Petitioner Patricia Compas ("Petitioner") brings the following motions: (1) motion for an order compelling answers to form interrogatories, set one (ROA 32); (2) motion for an order compelling answers to special interrogatories, set one (ROA 35); and (3) motion for an order deeming requests for admission admitted. The evidence before the court is that Petitioner's counsel propounded the aforementioned discovery on 9/3/25. Responses to the discovery requests were initially due 10/8/25. Five extensions were requested and granted.